

25STCV06826 25STCV06826

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-23

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Case Number: 25STCV06826 Hearing Date: September 23, 2026 Dept: 617

Dept.

617

Date:

9-23-26

Case

#: 25STCV06826

Trial

Date: None Set

MOTION TO STRIKE

MOVING

PARTY: Defendant, Universal Protection Service, LP

RESPONDING

PARTY: Plaintiff, Jesus Amador Gonzalez Mendoza

RELIEF

REQUESTED

Motion

to Strike

SUMMARY

OF ACTION

Plaintiff

Jesus Amador Gonzalez Mendoza sued public entity defendants and Defendant Universal Protection Service, LP (Universal) after he was allegedly attacked by security officers while waiting to board a train. Plaintiff claims that he took no action indicating he posed a threat to any individual. Plaintiff asserts claims for: (1) Battery; (2) Negligence; (3) Negligent Hiring, Training, and Supervision; and (4) Intentional Infliction of Emotional Distress.

On

August 27, 2026, the Court overruled Defendant Los Angeles County Metropolitan Transportation Authority's demurrer to Plaintiff's complaint and granted its motion to strike. On the same day, the Court also overruled Universal's demurrer to the complaint.

RULING: Granted in part.

Universal

moves to strike Plaintiff's prayer for punitive damages and the allegations in support of his request.^[1]

It argues that the prayer and allegations are irrelevant and/or improper because they are ambiguous as to whom Plaintiff seeks to recover punitive damages from. Plaintiff opposes the motion, arguing that his complaint clearly indicates he is asserting a claim for punitive damages against Universal. Because Plaintiff's complaint seeks punitive damages only against the individual Doe security officers, Universal's motion is granted in part with leave to amend.

Plaintiff's

complaint indicates that he only seeks to recover punitive damages from the individual security officers. He prays for "punitive damages against the individual defendants in their individual capacities in an amount to be determined according to proof at trial." [Compl. Prayer ¶ 4.] Plaintiff's allegation that "the above-mentioned Defendant" confirmed and ratified the officers' conduct is therefore irrelevant. [Id. ¶ 58.] This is especially true as the allegation is asserted in support of Plaintiff's claim for intentional infliction of emotional distress, which is only brought against the security officers. Universal's motion is therefore granted in part and the following is stricken from Plaintiff's complaint: "The conduct of the above-mentioned Defendant in confirming and ratifying this conduct was done

with the knowledge that Plaintiff would certainly suffer great physical and emotional distress, and was undertaken with a wanton and reckless disregard of the consequences to the Plaintiff."

Plaintiff

is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged punitive damages claim. (*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023.) Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Universal

to give notice.

[1] Although

the demurrer and motion to strike were filed at the same time, they were noticed for separate hearings. When grounds exist for both demurring and moving to strike, the documents must be filed together and "noticed for hearing and heard at the same time as the demurrer." (Cal. Rules of Court, rule 3.1322(b).) The Court nonetheless exercises its discretion and considers the motion to strike. (See Code Civ. Proc., § 436.)